

Tentative Rulings for June 23, 2026 Department 5

**To request oral argument, you must notify Judicial Secretary
Molly Frabotta at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 5 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 782 8254**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2400432	DUNAYEVICH VS ATLAS COPCO TOOLS & ASSEMBLY SYSTEMS LLC	MOTION FOR SUMMARY JUDGMENT OR IN THE ALTERNATIVE SUMMARY ADJUDICATION

Tentative Ruling: The motion of Vulcan Company, Inc., for summary judgment is granted. Vulcan's evidentiary objections are sustained.

Analysis:

Vulcan's two evidentiary objections are sustained on the grounds stated by Vulcan. Objection #1 is sustained on the additional ground that it lacks any credibility. The cutter in exhibit 5 of the plaintiff's deposition obviously bears no resemblance to the cutter in exhibit 6.

UMF#15 (that the district's computers used the same item description for 1 1/8 inch asphalt cutter shanks regardless of the manufacturer) is supported by the evidence cited by Vulcan and is not contradicted by the evidence cited by the plaintiff. Therefore, the plaintiff's citations to evidence that an asphalt cutter of the same description was issued to him, or that he recognized cutters of that description, do not create a disputed issue of material fact that the cutter used at the time of the accident was manufactured by Vulcan.

Similarly, the design features of Vulcan cutters are undisputed. (UMF 10.) The evidence cited by Vulcan supports its assertion that the cutters involved in the accident differ in design from those manufactured by Vulcan. (UMF 11.) Although the plaintiff disputes that assertion, the evidence on which it relies does not create a disputed issue of material fact, because all the various documents use the ambiguous item description that fails to distinguish between those cutters manufactured by Cutter and those from some different manufacturer.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2402839	BARTELS VS REGENTS OF THE UNIVERSITY OF CALIFORNIA	MOTION TO COMPEL FURTHER RESPONSE AGAINST DEFENDANTS BOMOTTI, WILSON WATKINS, MUELLER, UHRICH, HEDYATI, STARK & JESKE

Tentative Ruling: The hearing on the motion to compel is continued to 8-6-26 at 8:30 A.M. in this department. No later than 7-15-26, the parties shall meet and confer either in person, by telephone, or by videoconference in an effort to resolve their discovery